

		The Court finds for the Defendant, Sylvia Zamora, that she was not properly served with a notice to pay rent or quit with the proper VAWA notices; therefore, Ms. Zamora is entitled to possession of the property and is the prevailing party in this matter. Defendant's counsel may submit a motion for attorneys' fees and court costs. Defendant's counsel is ordered to prepare a judgment consistent with this Court's order. As the Court granted the motion for summary judgment, the Court need not address the motion for judgment on the pleadings.
6	30-2026-01558581 Far West South Coast, Ltd. vs. Platek	The Court has read and considered the Plaintiff's Motion in Limine (ROA 98) and Defendant's Opposition (ROA 103). The Court takes Judicial Notice of the Defendant's Answer (ROA 48), the Clerk's Certificate of Mailing/Electronic Service (ROA 56), the 7/6/2026 Minute Order (ROA 64), and the Clerk's Certificate of Mailing/Electronic Service (ROA 65). On June 20, 2026, an e-filing clerk in the Superior Court Clerk's Office emailed notice to the parties setting the matter for a court trial on July 6, 2026. On the evening of July 5, 2026, while reviewing the file, the Court determined that the matter had been erroneously set for a court trial because the Defendant had timely demanded a jury trial in the Answer filed on June 8, 2026. On July 6, 2026, the Defendant did not appear. Due to the scheduling error, the Court took the matter off calendar and reset the case for jury trial on July 27, 2026, with a pretrial conference on July 24, 2026. By Motion in Limine, the Plaintiff requests an order precluding the Defendant from presenting or referring at trial to any evidence or documents not produced in response to discovery. According to the declaration of Plaintiff's counsel, the Defendant did not produce any documents in response to discovery requests served on July 9, 2026. The Defendant opposes the motion, arguing that the discovery requests were untimely because, at the time they were served, the matter was set for trial on July 6, 2026. Defendant contends that, under California Code of Civil Procedure section 2024.020(b)(1), the discovery cutoff occurred 5 days before the originally scheduled trial date of July 6, 2026, rendering the requests untimely. The California Court of Appeal held that discovery sanctions such as excluding a party's witness for failure to identify the witness in discovery are appropriate only if the omission was willful or a violation of a court's order compelling a response. (<i>Mitchell v. Superior Court</i> (2015) 243 Cal.App.4th 269, 272.) The Court DENIES the Plaintiff's Motion in Limine as to all evidence which was not turned over during discovery. Orange County Superior Court Local Rule 317 requires parties who are set for a jury trial to have an issue conference at least 14 days before the date set for trial to do several things, including exchanging exhibits. The Court orders the Defendant and the Plaintiff's Counsel to meet today outside the courtroom to complete the objectives of Local Rule 317. Each

		party is ordered to turn over the documents they intend to admit into evidence by 5 PM today to the other party and disclose the names of witnesses they intend to call to testify. Failure to follow the Court's order and comply with Local Rule 317 will result in sanctions pursuant to Orange County Superior Court Local Rule 381.